

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-09

**HAPAG-LLOYD, A.G. and HAPAG-LLOYD (AMERICA) LLC. —POSSIBLE
VIOLATIONS OF 46 U.S.C. § 41102(c)**

**BUREAU OF ENFORCEMENT’S RESPONSE TO ORANGE AVENUE EXPRESS,
INC.’S MOTION FOR LEAVE TO INTERVENE**

The Commission’s Bureau of Enforcement (BOE) files this response to Orange Avenue Express Inc.’s (OAE) Motion for Leave to Intervene in this proceeding.

Under 46 C.F.R § 502.68(c)(2), the presiding officer may permit anyone to intervene who shows that a common issue of law or fact exists between such person’s interest and the subject matter of the proceeding; that intervention would not unduly delay or broaden the scope of the proceeding, prejudice the adjudication of the rights, or be duplicative of any existing party; and that such person’s participation may reasonably be expected to assist in the development of a sound record.

OAE’s Complaint in Docket no. 21-10 alleges similar violations of law as the BOE in this proceeding, namely, that Respondents Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC

(collectively Hapag-Lloyd or Respondent), refused to waive detention involving a common fact pattern—when Hapag-Lloyd either provided no return location for empty containers, or if a location was provided, appointments were unavailable at that location. Both proceedings allege this practice violates 46 U.S.C. § 41102(c). These common issues of fact and law make OAE’s intervention appropriate.

This intervention will not unduly broaden or delay this proceeding or be prejudicial. Although intervention may broaden the scope by including additional evidence of the practice at issue, BOE does not object to OAE’s participation. A key element of 46 U.S.C. § 41102(c) is that “[t]he claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis.” 46 C.F.R. § 545.4(b). OAE’s participation in the proceeding may assist in determining whether Hapag-Lloyd’s actions are a normal, customary, and continuous pattern of behavior by identifying additional instances of Hapag-Lloyd’s practices that adversely affect OAE. In addition, due to OAE’s timely Motion for Leave to Intervene, OAE’s discovery can occur on the same timelines as the primary parties. Further, OAE argues that a determination in this proceeding may affect its ability to recover damages in its own proceeding.

Lastly, because OAE’s intervention will contribute additional evidence of the violations alleged, this participation is reasonably expected to assist in the development of a sound record. A record comprising invoices to more than one party will be more complete than without OAE’s intervention.

For the foregoing reasons, BOE respectfully requests that the Administrative Law Judge grant OAE’s Motion for Leave to Intervene.

December 22, 2021

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CERTIFICATE OF SERVICE

I hereby certify that on this 22nd day of December 2021, a copy of the foregoing Response has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

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